**DIVISION BENCH ITEM NO.101 to 115 & 160**

**NATIONAL COMPANY LAW TRIBUNAL**
**ALLAHABAD BENCH**
**PRAYAGRAJ**

**CORAM:**

1. **SHRI PRAVEEN GUPTA,**
   **HON'BLE MEMBER (JUDICIAL)**
2. **SHRI ASHISH VERMA,**
   **HON'BLE MEMBER (TECHNICAL)**

**Date of Order: 29th April, 2024**

**Attendance-Cum-Order Sheet of the Hearing.**

**101- CA NO.120/2019 & IA NO.406/2023 IN CP (IB) No.330/ALD/2018**

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|---|---|
| **NAME OF THE COMPANY** | **ICICI BANK LTD V/S JAIPRAKASH ASSOCIATES LTD** |
| **UNDER SECTION** | **7 IBC** |

**102- CP (IB) No.371/ALD/2019**

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| **NAME OF THE COMPANY** | **RAJ KUMAR SHARMA V/S JAIPRAKASH ASSOCIATES LTD** |
| **UNDER SECTION** | **7 IBC** |

**103- CP (IB) No.372/ALD/2019**

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| **NAME OF THE COMPANY** | **ARUN SHARMA V/S JAIPRAKASH ASSOCIATES LTD** |
| **UNDER SECTION** | **7 IBC** |

**104- CP (IB) No.108/ALD/2022**

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| **NAME OF THE COMPANY** | **STATE BANK OF INDIA V/S JAIPRAKASH ASSOCIATES LTD.** |
| **UNDER SECTION** | **7 IBC** |

**105- CP (IB) No.23/ALD/2019**

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| **NAME OF THE COMPANY** | **JAYCON INFRASTRUCTURE LTD V/S M/S JAIPRAKASH ASSOCIATES LTD** |
| **UNDER SECTION** | **9 IBC** |

***-Sd-*** ***-Sd-***

**106- CP (IB) No.216/ALD/2019**

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| **NAME OF THE COMPANY** | **PHOSPHATE INDIA PVT LTD V/S JAIPRAKASH ASSOCIATES LTD** |
| **UNDER SECTION** | **9 IBC** |

**107- CP (IB) No.48/ALD/2021**

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| **NAME OF THE COMPANY** | **KANODIA INFRATECH LTD V/S JAIPRAKASH ASSOCIATES LTD** |
| **UNDER SECTION** | **9 IBC** |

**108- CP (IB) No.62/ALD/2022**

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| **NAME OF THE COMPANY** | **VOLTAS LIMITED V/S JAIPRAKASH ASSOCIATES LIMITED** |
| **UNDER SECTION** | **9 IBC** |

**109- CP (IB) No.95/ALD/2022**

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| **NAME OF THE COMPANY** | **R.K. ROAD LINES V/S JAIPRAKASH ASSOCIATES LIMITED** |
| **UNDER SECTION** | **9 IBC** |

**110- CP (IB) No.96/ALD/2022**

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| **NAME OF THE COMPANY** | **DIAMOND ROAD LINES V/S JAIPRAKASH ASSOCIATES LIMITED** |
| **UNDER SECTION** | **9 IBC** |

**111- CP (IB) No.97/ALD/2022**

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| **NAME OF THE COMPANY** | **ANAND CARRYING CORPORATION V/S JAIPRAKASH ASSOCIATES LIMITED** |
| **UNDER SECTION** | **9 IBC** |

**112- CP (IB) No.98/ALD/2022**

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| **NAME OF THE COMPANY** | **MAHAVIR ROADLINES V/S JAIPRAKASH ASSOCIATES LIMITED** |
| **UNDER SECTION** | **9 IBC** |

***-Sd-*** ***-Sd-***

**113- CP (IB) No.99/ALD/2022**

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| **NAME OF THE COMPANY** | **LUCKY FREIGHT CARRIERS V/S JAIPRAKASH ASSOCIATES LIMITED** |
| **UNDER SECTION** | **9 IBC** |

**114- CP (IB) No.23/ALD/2023**

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| **NAME OF THE COMPANY** | **SHYAM COAL COMPOANY V/S JAIPRAKASH ASSOCIATES LTD** |
| **UNDER SECTION** | **9 IBC** |

**115- CP (IB) No.24/ALD/2023**

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| **NAME OF THE COMPANY** | **AWADH ENTERPRISES V/S JAIPRAKASH ASSOCIATES LTD** |
| **UNDER SECTION** | **9 IBC** |

**160- CA No. 213/2018 IN CP (CAA) No. 19/ALD/2018,**
**CA (CAA) No. 174/ALD/2017**

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|---|---|
| **NAME OF THE COMPANY** | **JAIPRAKASH ASSOCIATES LTD WITH JAYPEE INFRASTRUCTURE DEVELOPMENT LTD** |
| **UNDER SECTION** | **230/232 OF COMPANIES ACT 2013** |

**COUNSEL APPEARED THROUGH PHYSICAL/ VIRTUAL HEARING:**

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| Sh. Amit Saxena, Sr. Adv. assisted by<br>Ms. Srideep Bhattacharya,<br>Ms. Aishwarya Gupta, Advs. | *: For ICICI Bank/FC & Res. in CA No.120/2019 (in item no.101) and applicant in CA No. 213/2018 (in item No. 160)* |
| Sh. Sandeep Arora, Adv. | *: For the SBI/FC in Item no.104* |
| Sh. RP Agarwal, Sr. Adv. assisted by<br>Sh. Abhishek Tripathi, Adv. | *: For the Corporate Debtor & Applicant in CA No. 120/2019 & IA No.406/2023 (in item No.101) & Petitioner in main CP in item no. 160 & Res. in CA No. 2013/2018* |

***-Sd-*** ***-Sd-***

## ORDER

**CA NO.120/2019 & IA NO.406/2023 IN CP (IB) No.330/ALD/2018**

**1.** Ld. Counsel representing the Corporate Debtor states that takeover proposal of the debts has already been supplied to the lender banks as proposed by the NARCL (National Asset Reconstruction Company Ltd.), where the entire debts of all the lenders banks are proposed to be taken over by the NARCL.

**2.** According to the Ld. Sr. Counsel representing the Corporate Debtor, the said takeover also eventually envisages settlement of debt with the incoming Financial Creditor by the Corporate Debtor.

**3.** Ld. Counsels representing the Financial Creditors state that as of now, since there is no settlement finalized inter-se between the parties and therefore, they would be pursuing their petitions for further hearing.

**4.** Faced with this situation, the Ld. Sr. Counsel representing the Corporate debtor seeks a very short accommodation for addressing arguments on behalf of the Corporate Debtor.

**5.** The prayer made by the Ld. Sr. Counsel for Corporate Debtor, seeking a short accommodation is not opposed by the Ld. Sr. Counsel Mr. Amit Saxena as well as by Mr. Sandeep Arora appearing on behalf of the Financial Creditors.

**6.** In view of the above, let the matter be adjourned for further hearing on 06th May, 2024 to come up Higher on the Board.

**7.** The photocopy of this order be placed on record in all the connected matters.

***-Sd-*** ***-Sd-***

**(Ashish Verma)** **(Praveen Gupta)**
**Member (Technical)** **Member (Judicial)**

***29th April, 2024***
*Bipul Kumar Tiwari*
*(Stenographer)*